

10. 9:00 AM CASE NUMBER: C25-03696
CASE NAME: LORI LOVELAND VS. HOME DEPOT U.S.A, INC.
*HEARING ON MOTION IN RE: TO STAY
FILED BY: HOME DEPOT U.S.A, INC.
TENTATIVE RULING:

A Stipulation and Order was filed with the Court. The Court continues the Case Management Conference to: December 09 2026 at 8:30 a.m.

The Court continues the Motion to Stay to: October 09 2026 at 9:00 a.m.

11. 9:00 AM CASE NUMBER: MSC19-01240
CASE NAME: SONNENSHEIN VS PACIFIC UNION
HEARING ON SUMMARY MOTION
FILED BY: SONNENSHEIN, STACEY
TENTATIVE RULING:

Continued to 9:00 a.m. on October 23, 2026, pursuant to the parties' stipulation and order filed July 15, 2026.

12. 9:00 AM CASE NUMBER: MSC21-02399
CASE NAME: SYED VS. LEITAO
HEARING ON SUMMARY MOTION
FILED BY: SYED, A.
TENTATIVE RULING:

Plaintiffs A. Syed and I. Syed's motion for summary adjudication as to Causes of Action One and Three is **denied**.

Plaintiffs seek summary adjudication on the first cause of action for breach of fiduciary duty and the third cause of action for fraud (concealment).

A plaintiff may move for summary judgment if plaintiff contends there is "no defense to the action", that the papers show "there is no triable issue of material fact and that the moving party is entitled to judgment as a matter of law". (§ 437c(a)(1) and (c).) A plaintiff meets his burden on summary judgment if plaintiff " 'has proved each element of the cause of action entitling' him 'to judgment on that cause of action.' " (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849.) A motion for summary adjudication under § 437c(f)(1) can be granted only "if it completely